

Spring 2 Health ABN 71 665 820 986

Letter of Engagement

Date:	/2022
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Private and confidential

Employee Name:

Employee Address:

Dear <insert name>,

Letter of engagement

I am pleased to offer you casual employment with us at {org.legal_name} ('the employer') on the terms and conditions set out in this letter.

1. Position

- 1.1 Your employment will be on a casual basis, as required.
- 1.2 Each occasion that you work will be a separate contract of employment which ceases at the end of that engagement.
- 1.3 As a casual employee, there is no guarantee of ongoing or regular work.
- 1.4 The duties of this role are in the **attached** position description. On each occasion that you work you will be required to perform these duties and any other duties the employer may assign to you, having regard to your skills, training and experience.
- 1.5 You will be required to perform your duties at locations as reasonably directed by the employer.

2. Terms and conditions of employment

- 2.1 Unless more generous provisions are provided in this letter or in the attached Schedule, the terms and conditions of your employment will be those set out in the Social, Community, Home Care and Disability Services Industry Award 2010 and applicable legislation. This includes, but is not limited to, the National Employment Standards in the *Fair Work Act 2009*. Neither the Social, Community, Home Care and Disability Services Industry Award 2020 nor any applicable legislation are incorporated into your contract of employment.
- 2.2 Your employment may be terminated at any time by providing you with notice, to apply at the end of your current engagement.

3. Remuneration

- 3.1 You will be paid at the rate of \$<insert amount> per hour, including the applicable casual loading.
- 3.2 You will be paid <weekly/fortnightly/monthly> to the bank account nominated by you.
- 3.3 The employer will also make superannuation payments on your behalf in accordance with the *Superannuation Guarantee (Administration) Act 1992*.
- 3.4 Your remuneration will be reviewed annually, and may be increased at the employer's discretion.

4. Your obligations to the employer

- 4.1 You will be required to:
 - (a) perform all duties to the best of your ability at all times;
 - (b) use your best endeavours to promote and protect the interests of the employer; and
 - (c) follow all reasonable and lawful directions given to you by the employer, including complying with policies and procedures as amended from time to time. These policies and procedures are not incorporated into your contract of employment.

5. Confidentiality

- 5.1 By accepting this letter of offer, you acknowledge and agree that you will not, during the course of your employment or thereafter, except with the consent of the employer, as required by law or in the performance of your duties, use or disclose confidential information relating to the business of the employer, including but not limited to client lists, trade secrets, client details and pricing structures.

6. Variation

- 6.1 These Terms can only be amended by mutual consent of the parties, in writing.

7. Governing Law

- 7.1 The parties agree that the law governing the terms of these terms will be <relevant state>

8. Entire agreement

- 8.1 The terms and conditions referred to in this letter constitute all of the terms and conditions of your employment and replace any prior understanding or agreement between you and the employer.
- 8.2 The terms and conditions referred to in this letter may only be varied by a written agreement signed by both you and the employer.

If you have any questions about the terms and conditions of employment, please don't hesitate to contact {org.primary_contact.name} and {org.signatory.name} on {org.phone}.

{org.name} ABN {org.abn}

Letter of Engagement

Employees and employers may also seek information about minimum terms and conditions of employment from the Fair Work Ombudsman. You can contact them on 13 13 94 or visit their website at www.fairwork.gov.au

To accept this offer of employment please return a signed and dated copy of this letter to me by / /2023

Yours sincerely,

Name:
Position:

I, <insert name of employee>, have read and understood this letter and accepted the offer of employment from {org.legal_name} on the terms and conditions set out in the letter. I understand that each engagement will constitute a separate contract of employment between us.

Signed: _____ Date: / / 2023

Print name:

PLEASE KEEP A COPY OF THIS LETTER FOR YOUR RECORDS